

NZ Boxer Ltd Credit account and Consignment stock supply agreement for commercial operators.

As an NZ Boxer Ltd wholesale /Credit account and Consignment customer, the below document is the terms and conditions of your NZ Boxer Ltd Credit account and Consignment stock supply scheme.

This Agreement is Between NZ Boxer Ltd and the below-named Retailer or their assigned representative acting for and on behalf of the Retailer for a supply of Goods and Display Hardware at the Business premises.

Business name and Premises(full Address)

Live Free Health And Fitness Gisborne

16 Fitzherbert Street, Whataupoko, Gisborne, NZ

Retailer Name (printed)

Kim Maree Larby

Retailer Home Address

3 Hinaki Street, Inner Kaiti, Gisborne

Application for

Credit account only

By signing the Credit Account and Consignment Agreement provided by NZ Boxer Ltd the Retailer agrees to these terms and conditions contained within.

Trade References (Company name, Contact number)

Live Free Health and Fitness Gisborne
0225461987

Patu Tahi Boxing Club Gisborne
0225272987

DEFINITIONS

Agreement means the Credit account and Consignment Agreement and these terms and conditions, together with all schedules referenced herein.

Goods mean all or any Goods ordered by The Retailer or Goods supplied or to be supplied to the Retailer by NZ Boxer Ltd pursuant to this Agreement whether ordered through the Online stock management portal or via direct telephone or email contact. A full list detailing those Goods supplied as part of the consignment can be found at www.nzboxer.com. (Sign in-go to consignment stock category).

Display Hardware means Display, shelving, cabinets and other Hardware supplied by NZ Boxer Ltd to aid the Retailer in Displaying and selling NZ Boxer Ltd supplied Goods.

Price means the price payable by the Retailer to NZ Boxer Ltd for the Goods on sold or purchased under, this agreement, all prices are exclusive of GST unless otherwise stated.

Premises means the premises or multiples of premises the retailer has elected to engage NZ Boxer Ltd to locate Goods and Display Hardware at.

Sold Goods or Goods means those Goods that are resold by the Retailer in the ordinary course of its business.

Online stock management portal means the online stock management portal made available to the retailer by NZ Boxer Ltd at www.nzboxer.com. Upon log-in to the retailer's account and Consignment Category, it shows the type and number of Goods held at each premise.

Stock Reconciliation Date means the date(s) or schedules that the Online stock management portal must be entered and updated by the Retailer to reflect the Goods sold /held on consignment.

Non Merchantable Goods means Goods that have been in the possession of the retailer and for whatever reason have been damaged or soiled, etc. rendering them non-saleable.

Merchantable Goods refers to Goods Returned to or collected by NZ Boxer Ltd at any point during or at agreement termination.

1 APPOINTMENT AND TERM

- Subject to the terms and conditions set out in this Agreement, NZ Boxer Ltd appoints the Retailer as a non-exclusive reseller of the Goods.
- This Agreement shall commence on the Commencement date described in the Consignment Agreement, and continue until terminated in accordance with clause 15

2 INITIAL SUPPLY

- On or about the Commencement date, NZ Boxer Ltd will supply the Retailer with an account and access to the Online stock management portal where the Goods to be supplied along with any Display Hardware will be detailed.
- NZ Boxer Ltd will promptly deliver the Goods along with any Display Hardware as detailed in the Consignment stock Schedule.
- NZ Boxer Ltd will endeavor to personally deliver and install the Goods and any Display Hardware included.

Where NZ Boxer Ltd is unable to personally deliver the Goods and any Display Hardware, then the Retailer shall erect any Hardware and display the goods on or within it at the Premises within 48hrs post delivery receipt time and date. Any deficit of Goods or Display Hardware must be notified to NZ Boxer Ltd within 24 hrs of delivery receipt. After which it will be deemed the retailer has checked and accounted for all goods and hardware being present and in a merchantable condition.

3 SALES

- NZ Boxer Ltd will provide an Online stock management portal for easy quick and efficient stock controls and management.
- NZ Boxer Ltd will seek to Maximise the potential of sales the retailer may perform by providing both quality Goods and an efficient stocking mechanism backed up by large warehousing and stock supplies.
- Subject to the terms and conditions of this Agreement, the Retailer shall use its best endeavors to maximize sales of the Goods from the Premises.
- The Retailer shall not do anything that may adversely affect the name, brand and reputation of NZ Boxer Ltd and its subsidiaries or brands.
- The Retailer may advertise or market the Goods with an association to NZ Boxer Ltd brands upon first gaining written approval.
- NZ Boxer Ltd will from time to time visit the premises with a view to ensuring all general public customer needs in NZ Boxer Ltd goods field are being met.

4 RESTOCKING PROCESS

- NZ Boxer Ltd shall establish the Online stock management portal on or about the Commencement Date of this agreement
- The Retailer shall solely utilize the Online stock management portal to record all Sold Goods within a period of not greater than by the 15th of each calendar month or at any other time requested by NZ Boxer Ltd from time to time.
- In the event no Goods have been sold since the previous 15th of the prior month then the retailer is still be required to utilize the Online stock management portal to notify NZ Boxer Ltd (process the “No Goods sold item as a cart item”).
- Where sold Goods to be replenished by Claro are out of stock, or otherwise unavailable to be replenished then at its sole discretion, NZ Boxer Ltd may either reduce the Goods supplied to the Retailer or provide alternative Goods as replacement of the unavailable Goods, NZ Boxer Ltd will notify the retailer accordingly. All Sold goods whether replenished or not are to be paid for by the retailer as normal.
- NZ Boxer Ltd may modify the Goods being stocked by the Retailer via the Online stock management portal. NZ Boxer Ltd will notify the Retailer in the event of any such change.
- The retailer will Guard and protect their access credentials to the NZ Boxer Ltd management portal. it will be deemed that anybody Using the retailer's access credentials to access the NZ Boxer Ltd stock management portal will be doing so on behalf and with the full authority of the retailer.

5 AUDIT

- NZ Boxer Ltd and/or its agent(s) may attend and inspect the Goods and Display Hardware during normal working hours and without prior notice for the purposes of ensuring the Retailer's compliance with this Agreement. The Retailer shall provide all reasonable access for NZ Boxer Ltd and/or its agent(s) to access the Premises and any other location where the Goods may be stored, and to provide all other reasonable assistance requested by NZ Boxer Ltd, without delay.
- The retailer accepts and understands it is essential that restocking Goods is kept up to date, on the NZ Boxer Ltd Online stock management portal. Having empty shelves means not maximizing potential.

6 DELIVERY, RISK, AND TITLE

- NZ Boxer Ltd will initially arrange the delivery of all Goods and Display Hardware, at NZ Boxer Ltd cost. Delivery will primarily be by an NZ Boxer Ltd representative or by a courier. Where delivery is by Courier the Retailer will within 48 hrs erect the provided Display Hardware and display the Goods for sale to the general Public.
- Delivery of the Goods and Display Hardware is deemed to have occurred at the time the Goods and Display Hardware are received by the Retailer or their representative.
- Any delivery time provided by NZ Boxer Ltd shall be an estimate only.
- Upon delivery, the Retailer shall notify NZ Boxer Ltd in writing in respect of any damaged, defective, or inconsistency in respect of the Goods delivered. This is to be done within 24 hours of the Delivery Date and time. Failure to do so within will deem the Goods as accepted by the Retailer.
- On Delivery, the Retailer will take responsibility for the Goods and will carry the full risk of liability with no recourse to NZ Boxer Ltd. The Retailer is responsible for adequately insuring the Goods and Display Hardware from the Delivery point.
- The Retailer agrees that until the Retailer has fully paid for the Goods and any other amounts owing by the Retailer to NZ Boxer Ltd under this Agreement NZ Boxer Ltd retains ownership of the Goods
- NZ Boxer Ltd and its agents shall have the right to enter the premises where the Goods are being stored at any reasonable time (including within 20 working days after the expiry or termination of this Agreement) to inspect/collect the Goods, and where the Retailer is in breach of this agreement remove the Goods from the Retailer's possession; and
- If the Goods are stored at the premises of a third party, the Retailer will immediately upon demand from NZ Boxer Ltd obtain the consent of that third party for NZ Boxer Ltd's entry onto the premises for this purpose.
- The Retailer shall pay all costs incurred by NZ Boxer Ltd in respect of such entry and repossession, including all legal costs where it is deemed the retailer is in breach of this agreement.

7 PRICE AND PAYMENT

- After each NZ Boxer Ltd agent audit or Retailer Goods, replenishment order NZ Boxer Ltd will issue an invoice to the Retailer for the Price of all Goods Sold since the date of the last invoice, plus all applicable delivery costs and any other costs permitted to be charged by NZ Boxer Ltd pursuant to this Agreement.
- All pricing displayed on the Online stock management portal is in New Zealand dollars, and unless otherwise stated is exclusive of GST

- NZ Boxer Ltd will not vary the retailer's Consignment Goods supplied Prices unless by giving five working days' notice to the Retailer. In any case, any price changes will not apply to previously sold Goods yet to be declared sold by the Retailer.
- The Retailer shall pay all invoices issued by NZ Boxer Ltd by the 20th of the following month.
- All payments pursuant to this Agreement shall be made in cleared funds, free of any set-off or deduction. NZ Boxer Ltd may allocate the payment to amounts owing at its sole discretion.

8 FAILURES TO COMPLY

- If the Retailer fails to pay any amounts owing by the due date or is otherwise in breach of this Agreement, NZ Boxer Ltd may, in its sole discretion, without prejudice to, and in addition to, any other rights and remedies do any one or more of the following: suspend delivery of any Goods or terminate (in whole or in part) the supply of Goods, or this Agreement by emailing notice to the Retailer; and
- charge interest at a rate calculated as 10% above the New Zealand base lending rate on the amount owing, calculated on a daily basis until NZ Boxer Ltd receives payment in full and
- appoint legal counsel to act on its behalf in pursuit of recovering the amounts owing, appoint a collections agent or other third parties to collect the amounts owing, all costs and expenses associated with such actions including legal costs as between solicitor and client, shall where deemed to be covered under this agreement and permissible under New Zealand Law be paid by the Retailer in addition to all amounts owing.

9 WARRANTIES

- To the extent permitted by applicable law, the parties agreement Between NZ Boxer Ltd and the Retailer is for business purposes, and the Consumer Guarantees Act 1993 (CGA) does not apply.
- Exceptions: NZ Boxer Ltd warrants that where its Goods are being sold by the retailer to the general public NZ Boxer Ltd accepts the Consumer Guarantees Act 1993 is in force and warrants to assist and reimburse the retailer regarding any warranty claims made to the retailer for NZ Boxer Ltd Goods were the Consumer Guarantees Act 1993 is enforceable between Retailer and General Public.
- Any product being returned to the retailer for a refund through a warranty claim must be accompanied by the original customer purchase invoice, fault description, the purchasing customer contact details as well as fault images emailed to NZ Boxer Ltd.

10 LIMITATIONS OF LIABILITY

- Except as otherwise provided in this Agreement, NZ Boxer Ltd will be under no liability whatsoever to the Retailer for any indirect loss, consequential loss, fines, loss of profit, loss of bargain, loss of business opportunity, or exemplary damages suffered by the Retailer or any other person, arising out of or flowing from this Agreement, whether contemplated by this Agreement or not, and whether actionable in contract, tort (including negligence), equity or otherwise. In addition to the above, NZ Boxer Ltd shall not be liable to the Retailer or any third party to the extent that any loss or damage was caused or contributed to by the Retailer's negligence, or that of the Retailer's employees, representatives, agents, or third parties.
- In the event that, NZ Boxer Ltd is found liable for any loss or damages, including the loss or damages set out

above, such liability will be limited to the Price paid or to be paid by the Retailer for the Goods under this Agreement to which the liability relates, and is inclusive of all claims made against NZ Boxer Ltd by the Retailer arising from the same event or series of related or connected events

11 INTELLECTUAL PROPERTY

- The Retailer agrees and acknowledges that NZ Boxer Ltd is the owner or licensee of all intellectual property rights related to the Goods manufactured by NZ Boxer Ltd. The Retailer without written permission from NZ Boxer Ltd will not use, distribute, duplicate, modify or otherwise alter the intellectual property of NZ Boxer Ltd or a third party in respect of the Goods; (b) tamper with or remove any markings, trademarks, patent numbers, registration numbers or other indication of the source of origin of any
- remove or tamper with Goods descriptions as required by law which are placed by NZ Boxer Ltd
- claim any rights, title, or interests in or to the intellectual property in the Goods; or
- damage or otherwise endanger NZ Boxer Ltd's, or any of NZ Boxer Ltd's suppliers or licensors', intellectual property rights in the Goods.

12 CONFIDENTIALITY

All intellectual property and other information belonging to a party which by designation or by its nature is intended to be treated as confidential will be confidential information for the purposes of this Agreement. Except as otherwise specified in this Agreement, or as otherwise required under law, neither party will without prior written consent of the other disclose any confidential information to any third party. To avoid doubt, confidential information includes but is not limited to the prices, profit margins, and the identity of NZ Boxer Ltd's suppliers and/or Retailers. The confidentiality obligations under this provision survive the termination of this Agreement.

13 PERSONAL INFORMATION

The Retailer agrees that NZ Boxer Ltd can hold and use the Retailer's account information for purposes related to the Retailer's dealings with NZ Boxer Ltd. If the Retailer is an individual, the Retailer has rights under the Privacy Act 1993 (or its successor legislation) to access any personal information that NZ Boxer Ltd holds and to request the correction of such personal information NZ Boxer Ltd Agrees that in the event of this agreement is terminated/closed and no funds are due under this agreement then at the retailers request all account information related to the retailer will be destroyed.

14 DISPUTE RESOLUTION

The parties shall endeavor to resolve any disputes in relation to this Agreement and/or the supply of Goods between them cooperatively in the first instance, prior to seeking a resolution through the Courts. However, nothing in this clause prevents either party from seeking interlocutory or injunctive relief.

15 TERMINATION

NZ Boxer Ltd and/or the Retailer may terminate this Agreement without cause by giving the other party 10 working days' written notice or earlier by Agreement between parties.

On termination or expiry of this Agreement:

- If the Retailer fails to pay any monies when due becomes insolvent, bankrupt, enters into liquidation, voluntary

administration, or otherwise, is in breach of this Agreement, NZ Boxer Ltd may (without prejudice to any other rights or remedies available to it) within five working days of notifying the Retailer to remedy the breach, and the Retailer failing to remedy the breach, suspend deliveries, refuse to supply further Goods and/or terminate this Agreement immediately and all outstanding monies owing under this Agreement to NZ Boxer Ltd (if any), will immediately fall due and payable.

- NZ Boxer Ltd or its agent will normally attend the retailer's premises for the collection of Goods and Display Hardware. If attendance is not possible then NZ Boxer Ltd will supply the retailer with the appropriate address labeled crating. The Retailer shall pack the Goods and Display Hardware owned by NZ Boxer Ltd in a manner that makes it available for a courier collection.
- Unless by agreement for earlier NZ Boxer Ltd attendance or collection the retailer will make the Goods and Display Hardware available for collection no later than 12 days from the date of the termination notice being sent. Failure of the retailer to make the Goods and Display Hardware available for collection will deem the Goods sold and billable to the retailer.
- Upon receipt of the returning Goods and Display Hardware, NZ Boxer Ltd shall do a Goods and Display Hardware Audit and issue a final invoice in respect of any the Sold Goods. Only Goods that are in Merchantable Goods will be accepted may be returned.
- the Retailer shall pay the final invoice issued by NZ Boxer Ltd immediately if in breach of this agreement in any way.

16 MISCELLANEOUS

- Governing Law: This Agreement shall be governed by the laws of New Zealand and the parties submit to the non-exclusive jurisdiction of the courts of New Zealand.
- Notices: Notices will be sufficiently given if posted or successfully transmitted by email to the intended recipient, NZ Boxer Ltd is sales@nzboxer.com, and the Retailer email is that used to access their account on the Online stock management portal.
- At any point goods are returned to NZ Boxer Ltd then only Merchantable Goods will be accepted. Non-Merchantable Goods will not be accepted (shop soiled or damaged Goods will be returned to the Retailer at cost and charged to the retailer's account).
- The retailer will notify NZ Boxer Ltd in writing of any changes to the Retailer's contact details.
- Variation: NZ Boxer Ltd may vary this Agreement at any time, by providing notice in writing to the Retailer, or posting the varied terms on its Website. The Retailer's continued ordering of Goods will deem the Retailer's acceptance of the varied terms. If the Retailer does not accept the varied terms, the Retailer may immediately terminate this Agreement by providing notice in writing to NZ Boxer Ltd and the version of the terms and conditions immediately previous to the varied terms shall continue to apply to Goods ordered prior to the termination by the Retailer.
- Assignment: The Retailer shall not assign or otherwise transfer or encumber its rights or obligations under this Agreement except with the prior written consent of NZ Boxer Ltd. NZ Boxer Ltd can at any time assign or otherwise transfer, encumber or subcontract any of its rights and obligations under this Agreement to a third party.
- Force majeure: Neither party will be liable for delay or failure in the performance of any of the obligations imposed by this Agreement, except an obligation to pay money, provided that such failure is beyond their reasonable control.

- **Waiver:** A party will not have waived or be deemed to have waived any provision of this Agreement unless the waiver is in writing and signed by that party.
- **Survivorship:** Termination of this Agreement for any reason will not affect such rights and obligations of the parties as are intended to survive the termination.
- **No relationship:** This Agreement does not create any relationship of partnership, employment, agency, or joint venture between the parties.
- **Severability:** Should any part or provision of this Agreement be held unenforceable or in conflict with any applicable laws or regulations, the invalid or unenforceable part or provision will be replaced with a provision that accomplishes, to such extent as possible, the original business purpose of the part or provision in a valid and enforceable manner, and the remainder of the Agreement will remain binding on the parties.
- **Entire Agreement:** This Agreement constitutes the sole understanding of the parties and supersedes all prior understandings, written or oral, which will be of no further force or effect.
- **Counterparts:** This Agreement may be executed in counterparts (which may be electronic or facsimile copies) and all of which, when taken together constitute one document.

Note: NZ Boxer Ltd operates a secure stand-alone digital base inventory for all stocks, stock levels are updated to the client portal **NZ Boxer Ltd website** at regular intervals.

The below signatory confirms they have fully read and understand their obligations and agreement to the above NZ Boxer Ltd, NZ Boxer Ltd Consignment supply agreement for retailers and commercial operators.

Where application is for a Limited Company (enter all directors names)

Kim Maree Larby
Kylie Kahukiwa

Director or Authorised signatory/ Business Owner or Trader Signature: E-Sign



Full Name (Printed)

Kim Maree Larby

Photo ID/Driver Licence



Date: June 13, 2023

Time: 16:38

Ip Address: 115.189.129.35